

THE UNIVERSAL HOUSE OF JUSTICE

1999-04-15

1 you have already been informed, through our email letter of 24 march
2 1999, of the disturbing news of the prison sentences received by four
3 bahá'ís in íl fahán, dr. Sina hakimán, mr. farzad khajeh Sharifabadi,
mr. h abibullah ferdosian Najafabadi and mr. ziaullah mirzapanah. The
4 condemned men did not receive a written copy of the court verdict giving
5 details of their alleged crimes and their sentences, this information being
6 conveyed to them orally. A transcript of the text of the verdict, number 2/791/77, has
now been received, and a provisional translation of it is en-
7 closed for your reference.
8 The four bahá'ís were convicted in connection with their participation
9 in the activities of the institute for higher bahá'í Studies, which is a similar
10 kind of organization to bihe, although the latter focuses mainly on aca-
11 demic subjects, whereas the institute for higher bahá'í Studies is essentially
12 concerned with the study of matters related directly to the faith. you will
13 recall that the many teachers, administrators and office workers of bihe,
14 who were arrested all over iran in the raids on more than 530 bahá'í homes
15 in the fall of 1998, were all released some time ago, with the exception of
16 the four in íl fahán who have now been sentenced.
17 it is significant to note that the verdict is based on an article of the crimi-
18 nal law of iran pertaining to the security of the country, although it has
19 no relevance to the charges mentioned in the text of the court report. The
membership of the four men in the institute for higher bahá'í Studies is
20 cited as their major crime. The institute is referred to as "secret," and its
21 crime was to attract youth to undertake study of their own faith, an activity
22 branded by the text of the verdict as "teaching against islám and the regime
23 of the islamic republic." bahá'í studies are, of course, not only not against
24 islám, but they do not relate in any way whatsoever to the politics of the

25 islamic republic. The bahá'í community in iran has the right to study the
 26 tenets of its faith, which is universal and all-embracing, acknowledging the
 27 validity of i slám and of all the revealed religions of the past.²⁹⁷ .1
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 298 1996–2000 • T h e f o u r Y e a r P l a n
 299 665dr. hakiman was sentenced to ten years' imprisonment, and the only
 300 offenses that the court verdict specifies are that he was "one of the active
 301 members of the [bahá'í] sect" and was "responsible for the formation of
 302 classes for bahá'í Studies." mr. Sharifabadi was sentenced to seven years,
 303 and the verdict states that he was "another active member of the misled
 304 bahá'í sect, Secretary of the institute for [higher] bahá'í Studies, affiliated
 305 with the house of justice of the bahá'ís and israel" and that he was "also
 306 in charge of the educational books of the bahá'ís." The verdict states that
 307 mr. Najafabadi (also seven years), was a "follower of the bahá'í ideology,
 308 member of the illegal institute for [higher bahá'í] Studies" and "administra-
 309 tor, supporter and distributor of books amongst the members and students affiliated
 to the misled [bahá'í] sect." The verdict finds mr. mirzapanah,
 310 who was given a three-year sentence, to have been "the intermediary be-
 311 tween øihrán and i l fahán and the institute for [higher] bahá'í Studies, and

[engaged in] activity against the regime of the i slamic r epublic."

312 Not only are the astonishing sentences by the court wholly unjustified
 313 and beyond all reason, but its verdict also has nothing to do with the article of the
 penal code which it cites in justification of its decisions. The text of
 314 this article is:

Article 498—Anyone, of whatever belief, who forms or organizes an

315 association, group or branch of a group with two or more people,
 316 under any name or title, in or outside the country, whose aim is the disruption of the
 security of the country, shall be sentenced to be-

tween two and ten years' imprisonment, provided that he does not

317 fall into the category of "muṣárib" [one who wages war against god].

318 it is clear that this article has no relationship to individuals engaged in teach-
319 ing the tenets of their peace-loving faith to its young followers. . . .

Department of the Secretariat 297 .4

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Postponement of Formation of

National Spiritual Assembly of Macedonia

[signed: The Universal House of Justice]